

	Hatch v. Fallace 11:00 a.m.	
23	30-2021-01229882 Schiffer v. Rialto Breeze Partners 11:00 a.m.	Status Conference.
24	30-2022-01277226 Robbins v. Claim Jumper Acquisition Company, LLC 11:00 a.m.	Review Hearing.
25	30-2022-01253878 Schlesinger v. City of Mission Viejo 2:00 p.m.	Motion regarding Costs.
26	30-2022-01262431 People of the State of California v. Sachs 2:00 p.m.	Motion regarding Costs.
27	30-2023-01309653 Wells Fargo Bank v. August 11:00 a.m.	Status Conference regarding Settlement.
28	30-2021-01215534 Weger v. Kia America, Inc.	Defendant's (Kia America, Inc.) Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Motion), filed on 7-6-23 under ROA No. 270, is GRANTED in part and DENIED in part as set forth below. The Notice of this Motion (Notice) was filed on 7-6-23 under ROA No. 278.) Defendant's Evidentiary Objections to the Declaration of Daniel Law filed on 9-14-23 under ROA No. 304: The court SUSTAINS all of the objections. Defendant's Evidentiary Objections to the Declaration of Marilyn Weger filed on 9-14-23 under ROA No. 303: The court OVERRULES all of the objections. Code of Civil Procedure section 437c, subdivision (p)(2) provides, "A defendant . . . has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that

		cause of action. Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” Code of Civil Procedure section 437c, subdivision (f)(1), provides, “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has not merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim of damages, or an issue of duty.” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851, (<i>Aguilar</i>), states, “Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. Although not expressly, the 1992 and 1993 amendments impliedly provide in this regard for a burden of <i>production</i> as opposed to a burden of <i>persuasion</i>. A burden of production entails only the presentation of ‘evidence.’ (Evid. Code, § 110.) A burden of persuasion, however, entails the ‘establish[ment]’ through such evidence of a ‘requisite degree of belief.’ (<i>Id.</i>, § 115.) It would make little, if any, sense to allow for the shifting of a burden of persuasion. For if the moving party carries a burden of persuasion, the opposing party can do nothing other than concede. Further, although not expressly, the 1992 and 1993 amendments impliedly provide for a burden of production <i>to make a prima facie showing</i>. A prima facie showing is one that is sufficient to support the position of the party in question. [Citation.]” (<i>Italics in Aguilar</i>; Footnotes 13 and 14 omitted.) <i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 838 (<i>Binder</i>) states, “Although summary judgment might no longer be considered a ‘disfavored’ procedure, [citation], the rule continues that the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed.” “On a
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		summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.]” (<i>Id.</i>, at p. 839.) <i>Cole v. Town of Los Gatos</i> (2012) 205 Cal.App.4th 749, 756-757, provides, “The plaintiff can defeat a defense motion for summary judgment by showing either that the defense evidence itself permits conflicting inferences as to the existence of the specified fact, or by presenting additional evidence of its existence. [Citation.] The dispositive question in all cases is whether the evidence before the court, viewed as a whole, permits only a finding favorable to the defendant with respect to one or more necessary elements of the plaintiff’s claims—that is, whether it negates an element of the claim ‘as a matter of law.’ [Citation.]” <i>Hufft v. Horowitz</i> (1992) 4 Cal.App.4th 8, 12-13 (<i>Hufft</i>) states, “The determination whether triable facts exist must be made in light of the issues defined by the pleadings. [Citation.] If a plaintiff pleads several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. ‘The moving defendant whose declarations omit facts as to any such theory . . . permits that portion of the complaint to be unchallenged.’ [Citation.] Where, as in this case, no opposition is presented, the moving party still has the burden of eliminating all triable issues of fact. [Citation.]” (See also, <i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (<i>Consumer Cause</i>).) The Motion seeks summary adjudication of the first, second, third, fourth fifth, and sixth causes of action. contained in Plaintiffs’ (Marilyn Weger and Micah Weger) First Amended Complaint (FAC), filed on 11-15-22 under ROA No. 185. (Notice; 1:25-3:4.) Issue No. 1—Plaintiffs’ First Cause of Action for Violation of Subdivision (d) of Civil Code Section 1793.2 fails as a matter of law because the undisputed facts defeat one or more elements of the cause of action, in the absence of evidence of any warranted defect or nonconformity to warranty that was not successfully repaired within a reasonable number of attempts: Code of Civil Procedure section 1793.2, subdivision (d), states, “(1) Except as provided in paragraph (2), if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable
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		express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity. [¶] (2) If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle.” <i>Oregel v. American Isuzu Motors, Inc.</i> (2001) 90 Cal.App.4th 1094, 1101 (<i>Oregel</i>), states, “A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). [Citations.]” (See also, CACI No. 3200.) <i>Silvio v. Ford Motor Co.</i> (2003) 109 Cal.App.4th 1205, 1208 (<i>Silvio</i>), explains, “The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle ‘after a reasonable number of attempts.’ ‘Attempts’ is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Italics in <i>Silvio</i>.) “Nor are appellants assisted by their citation to <i>Ibrahim v. Ford Motor Co.</i> (1989) 214 Cal.App.3d 878 [263 Cal.Rptr. 64]. As appellants argue, the case holds that the reasonableness of the number of attempts is a question of fact for the trier of fact. We do not quarrel with that holding, but do not believe that it addresses the issue here, whether ‘attempts,’ as used in Civil Code section 1793.2, subdivision (d)(2), requires more than one attempt. A trier of fact might determine that two or three or more attempts were reasonable under the circumstances of a case or were unreasonable under those circumstances. A single attempt does not meet the
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		statutory threshold, so that there is no need for a trier of fact to determine its reasonableness.” (<i>Id.</i>, at pp. 1208-1209.) <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 799 (<i>Robertson</i>), provides, “The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum there must be more than one opportunity to fix the nonconformity. [Citation.]” The Motion states, “In sum, the undisputed facts show that there was only <u>one visit</u> resulting in warranty repairs, with no return visits, for an alleged “defect” for which Plaintiffs presented the Subject Vehicle that was covered under a KA warranty.” (Motion; 6:1-3 (Emphasis and underscore in Motion).) Paragraph 11 of the FAC describes the defects in Plaintiffs’ vehicle as “. . . various defects, including but not limited to, defects related to the powertrain system, including the engine, and/or transmission; and other defects.” The court finds that Defendant has met its initial burden of proof of demonstrating that there was only one repair attempt. Defendant provides the following evidence: (1) The repair visit on 7-22-16 was pursuant to a safety recall. (Johal Decl., ¶ 10(a) and Exhibits 3, 4, and 5.); (2) The repair visit on 5-25-18 was pursuant to a complaint that Plaintiffs’ vehicle was making “. . . knocking noise while driving. . . .” (Johal Decl., ¶ 10(b).) Defendant addressed this complaint by replacing the engine in Plaintiff’s vehicle. (Johal Decl., ¶10(b) and Exhibits 6 and 7.); and (3) The visit on 10-2-20 was pursuant to a “. . . Product Improvement Campaign . . .” and “. . . Safety Recall Campaign” (Johal Decl., ¶ 10(c) and Exhibits 8, 9, and 10.) Defendant’s evidence shows that Plaintiffs brought their vehicle to Defendant for only one repair visit on 5-15-18 related to the defect at issue in the FAC. Defendant’s evidence is sufficient to demonstrate that the visits on 7-22-16 and 10-2-20 were for repairs where the alleged defect had not appeared. Plaintiff’s evidence, however, is sufficient to create a triable issue of material fact as to whether Plaintiffs brought their vehicle to Defendant on 7-22-16 and 10-2-20 for complaints regarding the engine. The declaration of Marilyn Weger states Plaintiff—Marilyn Weger presented Plaintiffs’ vehicle to Defendant on 5-26-13, 7-22-16, 5-15-18, and 10-2-20 for complaints or concerns regarding the engine. (Marilyn Weger Decl., ¶¶ 10-15.) The court finds that Plaintiffs’ evidence is sufficient to create a triable issue of material fact as to whether
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		Defendant was unable to repair Plaintiffs' vehicle after a reasonable number of repair attempts. Thus, the court DENIES the Motion for Summary Adjudication as to Issue No. 1. Issue No. 2— Plaintiffs' Second Cause of Action for violation of Civil Code section 1793.2, subdivision (b)(2) fails as a matter of law because Plaintiffs have not provided evidence of any actual damages they suffered as a result of the sole KA-warranted repair which took longer than 30 days to complete nor evidence of timely revocation of acceptance of Subject Vehicle: Civil Code section 1793.2, subdivision (b), states, "Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." The Motion asserts, "According to the information provided in the May 15, 2018 repair order for the engine replacement, that repair took more than 30 days. However, Plaintiffs have not presented evidence as far as any damages they actually and reasonably incurred caused by the repair visit that lasted over 30 days. Evidence of such damages is necessary for success on this cause of action, and since Plaintiffs has failed to provide any evidence of such damage, the claim must fail." (Motion; 6:11-15.) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication (Opposition), filed on 9-7-23 under ROA No. 293, states, "Further, Plaintiff suffered damages in the form of rental car payments" In Plaintiffs Separate Statement (PSS), filed on 9-7-23 under ROA No. 296, Defendant relies on the declaration of Jennifer C. Koo at paragraphs 5-9 and Exhibits B, C, D, E, and F (PSS No. 21) for the evidence that Plaintiffs have not suffered any damages. Defendant's evidence is sufficient to carry its initial burden of proof to demonstrate that Plaintiffs have not suffered damages.
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Plaintiff's evidence, however, is sufficient to create a triable issue of material fact as to whether Plaintiffs incurred damages during the period of time Defendant had Plaintiffs' vehicle to replace the engine. Plaintiff—Marilyn Weger's declaration states in part, ". . . I paid approximately \$500.00 in total for the rental vehicle during that time . . . Also . . . I had to purchase a plane ticket to fly down in order to retrieve the Vehicle after repairs were completed. (Marilyn Weger Decl., ¶ 14.)

The court finds that Plaintiffs' evidence is sufficient to create a triable issue of material fact as to whether Defendant incurred damages based on the 5-15-18 visit that resulted in the replacement of the engine. Thus, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 2.

Issue No. 3— Plaintiffs' Third Cause of Action for Violation of Subdivision (a)(3) of Civil Code Section 1793.2 fails as a matter of law because Plaintiffs have offered no evidence that KA provided insufficient literature or replacement parts necessary to perform any KA-warranted repair:

Civil Code Section 1793.2, subdivision (a)(3) provides, "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

The Motion states, "Plaintiffs has [*sic*] come forward with no evidence that KA failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Motion; 9:18-20 (Underscore in Motion).) The Opposition responds, ". . . Defendant relies solely on the declaration of Mr. Johal, who repeatedly concedes he has no qualifications or expertise to review the sufficiency of Defendant's service literature." (Opposition; 12:14-15.)

The declaration from Kyran Johal states, "According to my review of the repair orders and warranty history, at all times during the warranty period applicable to the Subject Vehicle, KA made available to the dealerships sufficient service literature and replacement parts to perform the repairs to the Subject Vehicle. No part or literature was unavailable for any repair. No part or literature was unavailable for any repair during the express warranty period applicable to the Subject Vehicle." (Johal Decl., ¶

		12.) Defendant’s evidence is sufficient to that the dealerships had sufficient service literature and parts to make repairs to Plaintiffs’ vehicle. Plaintiff relies on the Kyran Johal’s deposition testimony to attempt to create a triable issue of material fact as to whether the dealerships had sufficient service literature and parts for perform the repairs. (PSS No. 31; Law Decl., ¶ 28 and Exhibit 25; Opposition; 12:14-16.) Although Kyran Johal may not have the expertise to address whether the literature is sufficient from a technical standpoint (Law Decl., ¶ 28 and Exhibit 25 (for example, see Johal Depo. at 18:11-16 39:14-25 and 41:11-42:4), the Johal declaration is sufficient to demonstrate that the dealerships have sufficient literature and parts to perform the repairs. Plaintiffs have not presented evidence that the literature and parts provided to dealerships was insufficient. Therefore, the court GRANTS the Motion for Summary Adjudication as to Issue No. 3. Issue No. 4—Plaintiffs’ Fourth Cause of Action for violation of Breach of Express Warranty fails as a matter of law because KA fully complied with its obligations under any express warranty covering the Subject Vehicle.” The Motion contends, “Plaintiffs’ repetitive Fourth Cause of Action for breach of express warranty fails for the same reasons their First Cause of Action does—KA fully complied with the terms of its express warranties by repairing or replacing components shown to be defective in materials or workmanship.” (Motion; 10:4-7.) Since the court has DENIED the Motion for Summary Adjudication as to the first cause of action (Issue No. 1), the court DENIES the Motion for Summary Adjudication as to Issue No. 4 for the same reasons as stated for Issue No. 1. Issue No. 5—Plaintiffs’ Fifth Cause of Action for Breach of Implied Warranty fails as a matter of law because the undisputed facts defeat one or more elements of the cause of action, in the absence of evidence of a defect or nonconformity rendering the Subject Vehicle unmerchantable during the first year of ownership: On 4-18-23, the court SUSTAINED the Demurrer to the fifth cause of action (Breach of the Implied Warranty of Merchantability) with 14 days leave to amend. (4-18-23 Minute Order.) Plaintiff has not filed a subsequent
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		amended complaint. Therefore, the Motion is MOOT as to Issue No. 5 because the fifth cause of action is no longer cause of action in this case. Issue No. 6—Plaintiffs’ Fifth Cause of Action for violation of Breach of Implied Warranty fails as a matter of law because the claim is barred by the applicable statute of limitations. The Motion is MOOT as to Issue No. 6 for the same reasons as stated for Issue No. 5. Issue No. 7—Plaintiffs’ Sixth Cause of Action for Fraud by Omission fails as a matter of law because Plaintiffs cannot meet the necessary elements of a fraud cause of action, including Plaintiffs cannot establish KA owed him a duty of disclosure, KA did not have exclusive knowledge of a defect in the Subject Vehicle before purchase, KA did not actively conceal any such defect from Plaintiffs, and Plaintiffs have no evidence of fraud damages: “The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” ‘ [Citation.] Fraud must be pleaded with specificity rather than with ‘ “general and conclusory” ‘ allegations. [Citation.] (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248 (<i>Boschma</i>); See also, CACI No. 1901.) <i>LiMandri v. Judkins</i> (1997) 52 Cal.App.4th 326, 336 (<i>LiMandri</i>), provides, “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ [Citation.]” <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345-346 (<i>Santana</i>), acknowledged the viability of a fraudulent concealment cause of action arising out of the purchase of a vehicle. <i>Santana</i> states, “The sum total of the
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	evidence on that front is the following: a publicly disclosed 2007 recall related to a software problem that apparently was fixed; an issue that cropped up in 2008 and 2009, with an unknown frequency, in a different vehicle, where a TIPM was drawing too much power when the vehicle was not in use; and a 2009 internal e-mail exchange regarding the heating and air conditioning front blower in some vehicle that occurred some amount of times that had something to do with a relay in a TIPM. All the other evidence post-dates the critical time period, which is pre-November 2011. [¶] That is not enough. The very existence of a warranty presupposes that some defects may occur. Thus, the occurrence of a few defects that, so far as the record reveals, were all fixable, and mostly involved vehicles Santana did not own, is not enough to demonstrate an intent to conceal a defect in the TIPM. Santana would need evidence that, prior to Santana's purchase of the vehicle, Chrysler was aware of a defect in the TIPM that it was either unwilling or unable to fix. There was no such evidence." (<i>Ibid</i>, Footnote 4 omitted.) As to whether there was a duty to disclose, the Motion states, "If there is no direct transaction, there is no opportunity for the defendant to make any sort of disclosure. There is no direct transaction here. Plaintiffs purchased the vehicle from Kia of Serramonte, not KA." (Motion; 13:10-11.) The Opposition states, "Kia was obligated to disclose Theta II engine defects because it had exclusive knowledge and actively concealed them." (Opposition; 14:6-7.) <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844 (<i>Dhital</i>), states, ". . . Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects." <i>Dhital</i> also found that damages were alleged ". . . in the form of money paid to purchase the car." (<i>Ibid.</i>) The California Supreme Court has granted review of <i>Dhital</i>, but denied a request for de-publication. (See California Supreme Court Opinion at 523 P.3d 392.) California Rules of Court, rule 8.1115(e)(1), states, "Pending review and filing of the Supreme Court's opinion, unless otherwise
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	ordered by the Supreme Court under (3), a published opinion of a Court of Appeal in the matter has no binding or precedential effect, and may be cited for potentially persuasive value only. Any citation to the Court of Appeal opinion must also note the grant of review and any subsequent action by the Supreme Court.” The parties do not dispute that Plaintiffs bought the vehicle from Kia of Serramonte. (PSS No. 49.) The parties do not appear to dispute that Defendant provided an express warranty for this vehicle. (PSS No. 2 at p. 2 of the PSS, and PSS No. 2 at p. 43 of the PSS.) Defendant does not appear to dispute that it manufactured Plaintiffs’ vehicle by distributing it to Kia of Serramonte. (PSS No. 1.) The parties do not appear to dispute that Kia of Serramonte was an authorized dealer for Defendant. (PSS No. 1 at p. 43 of the PSS.) The court finds that Defendant has carried its initial burden of demonstrating that it did not have a duty to disclose because there was no direct buyer-seller relationship between Plaintiffs and Defendant. The evidence, however, creates a triable issue of material fact as to whether there was a duty to disclose based on Defendant’s exclusive knowledge of material facts not known to Plaintiffs. As the manufacturer of Plaintiffs’ vehicle sold to Plaintiffs through a dealer authorized by Defendant, the court finds that there is a sufficient relationship requiring Defendant to disclose known defects. The Motion next states, “Even if Plaintiffs could somehow prove there was a direct transaction, they cannot show that KA had exclusive knowledge of the alleged engine defect and actively concealed it from them. . . . Plaintiffs must produce admissible evidence that before they purchased the Subject Vehicle, KA was aware of defects it was unwilling or unable to fix at the time of purchase. . . .” (Motion; 14:25-26 and 15:9-11.) The Opposition states, “. . . Kia’s own documents demonstrate an intentional and systematic campaign to conceal Theta II engine defects from the public (including Plaintiff) and even from the government. . . .” (Opposition; 16:4-5.) PSS No. 88 states, “Plaintiffs have produced no evidence supporting their claim of fraud by omission.” <i>Bayramoglu v. Nationstar Mortgage LLC</i> (2020) 51 Cal.App.5th 726, 733 (<i>Bayramoglu</i>), states, “A plaintiff’s ‘factually devoid’ discovery responses may be used to shift the burden of production onto the plaintiff when the ‘logical inference’ is that the plaintiff possesses no facts to support his or her claims. [Citation.]” <i>Andrews v. Foster Wheeler LLC</i> (2006) 138 Cal.App.4th 96, 106-107 (<i>Andrews</i>),
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	provides, “<i>Scheiding</i> presumed, as a matter of law, that plaintiffs’ responses to comprehensive discovery must fully disclose the evidence known to them at the time of their responses. Parties have a duty to respond to discovery requests ‘as completely and straightforwardly as possible given the information available to them.’ [Citation.] When defendants conduct comprehensive discovery, plaintiffs cannot play ‘hide the ball.’ Moreover, it is not reasonable for courts to infer pursuant to Code of Civil Procedure section 437c, subdivision (c), that defendants can discover further material facts from plaintiffs’ lists of people and documents if the plaintiffs do not disclose any facts known by such persons or contained in such documents when asked to do so. In moving for summary judgment, ‘[t]he defendant may . . . present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.’ [Citation.] If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs’ factually devoid discovery responses.” (Footnote 3 omitted.) PSS No. 88 relies on the declaration from Jennifer C. Koo to support that Plaintiff provided factually devoid discovery responses. PSS No. 88 does not direct the court to a specific discovery response regarding whether Plaintiffs have produced evidence supporting their claim for fraud by omission. For example, in response to Form Interrogatory 17.1, Plaintiffs referred Defendant to documents that Plaintiffs produce in response to Defendant’s Requests for Production of Documents. (Koo Decl., ¶ 10 and Exhibit G.) By referring Defendant to documents that Plaintiffs had produced, Plaintiffs discovery responses are not factually devoid. Viewing the discovery responses, the court finds that the responses are not factually devoid because they do not lead to the logical inference that Plaintiffs possess no facts to support their claim for fraud by omission. Thus, the court finds that Defendant has not met its initial burden of providing evidence showing the nonexistence of a triable issue of material fact as to whether Defendant was aware of the engine defect and that it was unwilling or unable to fix the engine defect. Therefore, the court DENIES the Motion for Summary Adjudication as to Issue No. 7.
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Issue No. 8—Plaintiffs’ Sixth Cause of Action for Fraud by Omission fails as a matter of law because it is barred by the Economic Loss Doctrine.

As to whether the economic loss rule applies, *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*), states, “We begin with a brief background on the economic loss rule. Economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property. . . [Citation.] [Citation.] Simply stated, the economic loss rule provides: [W]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses. This doctrine hinges on a distinction drawn between transactions involving the sale of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts. [Citation.] The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. [Citation.] Quite simply, the economic loss rule prevent[s] the law of contract and the law of tort from dissolving one into the other. [Citation.]” (Internal quotation marks omitted.) “We hold the economic loss rule does not bar Robinson’s fraud and intentional misrepresentation claims because they were independent of Dana’s breach of contract. [Citation.] Because Dana’s affirmative intentional misrepresentations of fact (i.e., the issuance of the false certificates of conformance) are dispositive fraudulent conduct related to the performance of the contract, we need not address the issue of whether Dana’s intentional concealment constitutes an independent tort.” (*Id.*, at p. 991; Footnote 7 omitted.)

Robinson did not directly address the issue as to whether a cause of action for intentional concealment is an intentional tort for the purpose of applying the economic loss rule. Under *Santana*, a cause of action for intentional concealment is viable in the context of a purchase of a vehicle. The court will follow *Santana*.

Therefore, the court **DENIES** the Motion for Summary Adjudication as to Issue No. 8.

		In summary, the court GRANTS Defendant's (Kia America, Inc.) Motion for Summary Judgment, or in the Alternative, Summary Adjudication, filed on 7-6-23 under ROA No. 270, as to Issue No. 3. The court DENIES the Motion as to Issue Nos. 1, 2, 4, 7, and 8. The Motion is MOOT as to Issue Nos. 5 and 6. Since the court has DENIED some of the issues presented for summary adjudication, the court DENIES the Motion for Summary Judgment. Plaintiff is to give notice.
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